

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 12-02

**MAHER TERMINALS, LLC
COMPLAINANT**

v.

**THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

DECLARATION OF JARED R. FRIEDMANN

JARED R. FRIEDMANN, ESQ. hereby declares as follows:

1. I am counsel at the law firm of Weil, Gotshal, and Manges LLP ("Weil"), attorneys for Respondent The Port Authority of New York and New Jersey (the "Port Authority") in this action. I submit this declaration in connection with the Port Authority's Reply in Opposition to Maher Terminals, LLC's Second Motion to Compel Discovery from Respondent Port Authority of New York and New Jersey. I am personally familiar with the facts stated herein.
2. Attached hereto as Exhibit A is a true and correct copy of the Complaint, dated March 30, 2012.
3. Attached hereto as Exhibit B is a true and correct copy of Complainant's First Request for Production of Documents, dated March 30, 2012.

4. Attached hereto as Exhibit C is a true and correct copy of Complainant's First Set of Interrogatories Propounded on the Port Authority of New York and New Jersey, dated March 30, 2012.

5. Attached hereto as Exhibit D is a true and correct copy of the Port Authority's Objections and Responses to Complainant's First Set of Interrogatories, dated May 7, 2012.

6. Attached hereto as Exhibit E is a true and correct copy of the Port Authority's Amended and Supplemental Objections & Responses to Complainant's First Set of Interrogatories, dated July 12, 2012.

7. Attached hereto as Exhibit F is a true and correct copy of the Port Authority's Objections and Responses to the Complainant's First Request for Production of Documents, dated May 7, 2012.

8. In 2012, upon receipt of Maher's discovery requests (*i.e.*, Exhibits B and C hereto), the Port Authority collected, processed and began its review of over 200,000 documents from 43 custodians spanning the years 1980 to 2012, in accordance with the specified time frames established by Maher in these discovery requests.

9. Attached hereto as Exhibit G is a true and correct copy of Maher Terminals, LLC's Responses to the Port Authority of New York and New Jersey's First Set of Interrogatories to Maher Terminals, LLC, dated June 6, 2012.

10. Attached hereto as Exhibit H is a true and correct copy of Maher Terminals, LLC's Amended and Supplemental Responses to the Port Authority of New York and New Jersey's First Set of Interrogatories to Maher Terminals, LLC, dated July 27, 2012.

11. Attached hereto as Exhibit I is a true and correct copy of Maher Terminals, LLC's Motion to Compel Discovery from Respondent Port Authority of New York and New Jersey, dated September 10, 2012.

12. Attached hereto as Exhibit J is a true and correct copy of the Port Authority's Reply in Opposition to Maher Terminals, LLC's Motion to Compel Discovery from Respondent Port Authority of New York and New Jersey, dated September 25, 2012.

13. Attached hereto as Exhibit K is a true and correct copy of the Initial Decision Granting Motion to Dismiss, dated January 30, 2015.

14. Attached hereto as Exhibit L is a true and correct copy of the Commission's Memorandum Opinion and Order, dated December 17, 2015.

15. Attached hereto as Exhibit M is a true and correct copy of the Scheduling Order, dated January 29, 2016.

16. Attached hereto as Exhibit N is a true and correct copy of the Port Authority's Second Set of Interrogatories to Maher Terminals, LLC, dated February 16, 2016.

17. Attached hereto as Exhibit O is a true and correct copy of Complainant's Revised First Set of Interrogatories Propounded on the Port Authority of New York and New Jersey, dated February 16, 2016.

18. Attached hereto as Exhibit P is a true and correct copy of Complainant's Revised First Request for Production of Documents from the Port Authority of New York and New Jersey, dated February 16, 2016.

19. Attached hereto as Exhibit Q is a true and correct copy of the Port Authority's Motion for Protective Order from Maher's Revised Discovery Requests and Deposition Notices, dated March 10, 2016.

20. Attached hereto as Exhibit R is a true and correct copy of Maher Terminals, LLC's Opposition to The Port Authority of New York and New Jersey's Motion for Protective Order, dated March 17, 2016.

21. Attached hereto as Exhibit S is a true and correct copy of the Port Authority's Objections and Responses to Complainant's Revised First Set of Interrogatories, dated March 17, 2016.

22. Attached hereto as Exhibit T is a true and correct copy of the Port Authority's Objections and Responses to Complainant's First Revised Request for the Production of Documents, dated March 17, 2016.

23. From March 17, 2016 to May 27, 2016, the Port Authority produced over 15,000 responsive documents to Maher's discovery requests. Maher, on the other hand, has produced just over 500 documents, total, in response to the Port Authority's discovery requests.

24. The Port Authority's document productions included the agreements for all changes of control dating between 1997 and 2012.

25. Attached hereto as Exhibit U is a true and correct copy of the Maher Terminals, LLC's Responses to the Port Authority of New York and New Jersey's Amended First Request for Production of Documents to Maher Terminals, LLC, dated March 17, 2016.

26. Attached hereto as Exhibit V is a true and correct copy of the letter, dated March 31, 2016, from Maher's attorney Bryant Gardner to the Port Authority's attorney Jared Friedmann.

27. Attached hereto as Exhibit W is a true and correct copy of the Order on Subpoena Requests and Respondent's Motion for Protective Order from Revised Discovery Requests, dated April 12, 2016.

28. On April 13, 2016, the Port Authority met and conferred with Maher telephonically in good faith to discuss the purported "deficiencies" listed in Maher's March 31st letter and to discuss Maher's discovery requests in light of the Protective Order.

29. Attached hereto as Exhibit X is a true and correct copy of the email, dated April 15, 2016, from Larry Kiern to Jared Friedmann.

30. Attached hereto as Exhibit Y is a true and correct copy of the email, dated April 18, 2016, from Jared Friedmann to Larry Kiern.

31. Attached hereto as Exhibit Z is a true and correct copy of the email, dated April 19, 2016, from Larry Kiern to Jared Friedmann.

32. Attached hereto as Exhibit AA is a true and correct copy of the email, dated April 20, 2016, from Jared Friedmann to Larry Kiern.

33. Attached hereto as Exhibit BB is a true and correct copy of the Order on Maher's Motion for Page Limitation Relief and Port Authority's Motion to Strike Maher's Second Motion to Compel, dated May 18, 2016. The matters the Port Authority

is required to quote spans 55 pages, thus the applicable page limitation for the Port Authority's opposition brief is 105 pages.

34. Attached hereto as Exhibit CC is a true and correct copy of the Port Authority's Amended and Supplemental Objections and Responses to Complainant's Revised First Set of Interrogatories, dated June 6, 2016.

I certify under penalty of perjury that the foregoing is true and correct to the best of my knowledge, information, and belief.

Dated: New York, NY
June 8, 2016



Jared R. Friedmann